

Multiple Choice (10 marks)

1. Functions of the law include all but which of the following?
 - (a) maximizing individual freedom
 - (b) providing a basis for compromise
 - (c) keeping the peace
 - (d) promoting the principles of the free enterprise system
2. The legislative branch of the United States government has the power to _____ the law.
 - (a) interpret
 - (b) make
 - (c) enforce
 - (d) override
3. Which of the factors below contributed significantly to the revival of natural law in the 20 th century?
 - (a) The Depression of the 1930 s.
 - (b) The rise of Fascism.
 - (c) The international recognition of human rights after WWII.
 - (d) The Bolshevik revolution.
4. According to Malinowski, the Trobriand Islanders organized their society around what concept?
 - (a) Conflict.
 - (b) Love.
 - (c) War.
 - (d) Reciprocity.
5. Which of the following propositions would be rejected by those who describe themselves as critical legal theorists?
 - (a) Law is politics.
 - (b) Law is determinate.
 - (c) Law reflects economic power.
 - (d) Law is unstable.

True / False (10 marks)

Answer True or False

6. True or False: H.L.A. Hart is the author of the influential book 'The Concept of Law'.
7. True or False: According to Austin, the science of jurisprudence is primarily concerned with positive law, which is law enacted by human authorities.
8. True or False: Domestic law always prevails over international law, allowing countries to ignore their international obligations.
9. True or False: The enforcement of the International Covenant on Civil and Political Rights relies solely on the judgment of an international tribunal.
10. True or False: Critical Race Theorists reject concepts such as 'justice' because they believe these ideas are irrelevant to contemporary society.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss John Austin's assertion that jurisprudence is the philosophy of positive law. Analyze its implications for understanding legal systems and their foundations in constitutional law.
12. Discuss the entities entitled to request advisory opinions from the International Court of Justice (ICJ) and analyze the implications of these requests on international law and governance.

End of Paper